

M/S Sarasth Propbhid Pvt. Ltd. v. Executive Engineer, Electricity Urban Distribution Division and 4 Others

High Court of Judicature at Allahabad · Division Bench · 24 February 2023 · WRIT - C No. - 4797 of 2023 · **Disposed by consent; clause 6.5 deposit to be recalculated**

HEADNOTE

Writ against a recovery citation of Rs 2,47,75,915 disposed of by consent after the licensee withdrew the citation and agreed to decide the complaint under clause 6.5 of the U.P. Electricity Supply Code, 2005. The deposit to be calculated and communicated within two weeks is the lesser of the sum claimed and the charges on the average of the preceding six months' bills, not 50% of the certificate. The complaint is to be decided on deposit of that amount. Correctness of the demand was left open.

FACTUAL SUMMARY

M/s Sarasth Propbhid Pvt. Ltd. challenged a recovery citation dated 7 November 2022 for Rs 2,47,75,915. The Executive Engineer wrote on 13 February 2023 to the Additional District Magistrate (Revenue), Ghaziabad, that in view of this Court's order of 16 July 2021 in the consumer's earlier writ the recovery was being withdrawn and the dispute would be decided under clause 6.5 of the U.P. Electricity Supply Code, 2005. The consumer told the Court that the department had required a deposit of half that sum before deciding the complaint.

REUSABLE CONSTRUCTIONS

1. Under clause 6.5 of the U.P. Electricity Supply Code, 2005, the deposit before the complaint is decided is the lesser of the sum claimed and the charges on the average of the preceding six months' electricity bills. A flat demand for 50% of the recovery certificate, made without determining which of those two amounts is less, is not that deposit. ¶ 2-3
2. Where the licensee withdraws the recovery citation and undertakes to communicate the clause 6.5 deposit and to decide the complaint on payment of that sum, the writ may be disposed of by consent on those statements, leaving the correctness of the demand to the clause 6.5 proceeding. ¶ 2-3

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

Deposit pending a clause 6.5 complaint after withdrawal of recovery

HOLDING

The writ was disposed of by consent in terms of the parties' statements. The licensee had communicated that the recovery citation dated 7 November 2022 for Rs 2,47,75,915 was being withdrawn and that the dispute would be decided under clause 6.5 of the U.P. Electricity Supply Code, 2005, in line with this Court's order of 16 July 2021. Accepting the consumer's account of that clause, the licensee undertook to calculate within two weeks the deposit as the lesser of the sum claimed and the electricity charges on the average of the bills for the preceding six months, to inform the consumer, and on deposit to decide the complaint. A requirement to deposit 50% of the recovery-certificate amount, without that comparison, was not accepted as the clause 6.5 deposit. ¶ 2-3

PRINCIPLE TAGS

6.5-pending-complaint-writ-remitted Recovery having been withdrawn, the writ was disposed of by consent so that the clause 6.5 complaint would be decided after the licensee communicated, within two weeks, the deposit equal to the lesser of the sum claimed and the six-month average charges. ¶ 2-3

NOT DECIDED — WHETHER THE DEMAND OF RS 2,47,75,915 WAS CORRECTLY ASSESSED

Left to the clause 6.5 complaint after deposit of the recalculated sum. ¶ 2-3

SCJ-3631 · M/S Sarasth Propbhild Pvt. Ltd. v. Executive Engineer, Electricity Urban Distribution Division and 4 Others · · Supply Code
Jurisprudence

A jurisprudence extract prepared from the text of the judgment; not a substitute for the judgment, and to be verified against the original before use.